

PHYSICIAN EMPLOYMENT AGREEMENT

This Physician Employment Agreement (this “Agreement”) is entered into as of November 2, 2023 (the “Effective Date”), by and between Merrow Cardiology Associates PC, a Connecticut professional corporation with its primary practice site at 220 Farmington Avenue, Hartford, Connecticut (the “Practice Site”) (the “Company”), and Alina Fenwick, M.D., an individual and physician licensed to practice medicine in the State of Connecticut (“Employee”). The Company and Employee are sometimes referred to individually as a “Party” and together as the “Parties.”

Section 1. Background and Consideration

- (A) The Company operates a cardiology practice providing diagnostic and interventional cardiology services to patients in the greater Hartford, Connecticut area. The Company is employing Employee as an Interventional Cardiologist, a position in which Employee will treat patients referred to or scheduled with the Company, will use the Company’s cardiac catheterization laboratory and supporting staff, and will have access to the Company’s patient relationships and referral sources developed at and around its primary practice site.
- (B) In consideration of Employee’s employment as an Interventional Cardiologist, the annual base salary, cath lab privileges, productivity incentive eligibility, and onboarding support Employee will receive under Employee’s separate compensation letter, and Employee’s resulting access to the Company’s existing patients and referral relationships, and other good and valuable consideration, the receipt and sufficiency of which are acknowledged, the Parties agree as follows.
- (C) The Company has built its interventional cardiology service line over a period of years, including its cath lab staffing, its referral relationships with primary care and emergency physicians throughout the Hartford area, and its scheduling and call coverage arrangements with the hospitals at which its physicians hold privileges. Employee’s access to those referral relationships, scheduling arrangements, and the patients scheduled through them is a direct result of Employee’s position with the Company and is not something Employee would otherwise possess.

Section 2. Position, Duties, and Schedule

- (A) Employee shall serve as an Interventional Cardiologist for the Company, providing diagnostic and interventional cardiology services, including cardiac catheterization and related procedures, to patients of the Company at the Practice Site and at any hospital or outpatient facility at which the Company arranges for Employee to hold privileges. Employee shall devote substantially all of Employee's professional working time and best efforts to the performance of these duties.
- (B) Employee shall participate in the Company's on-call rotation for interventional cardiology coverage on the schedule the Company establishes from time to time, and shall maintain hospital privileges, credentialing, and any facility-specific certifications reasonably required for Employee to perform the duties described in this Section.
- (C) Employee shall comply with the Company's clinical protocols, scheduling practices, and documentation requirements, including timely completion of medical records in the Company's electronic health record system, and shall otherwise conduct herself in a manner consistent with the professional standards ordinarily expected of an interventional cardiologist in active practice.

Section 3. Representations of Employee

- (A) Employee represents that Employee holds an unrestricted license to practice medicine in the State of Connecticut, an unrestricted federal registration permitting Employee to prescribe controlled substances, and board certification in cardiovascular disease, and that Employee will maintain each of these in good standing throughout Employee's employment with the Company.
- (B) Employee represents that Employee is not a party to any agreement, restrictive covenant, or other obligation that would prevent or restrict Employee from accepting employment with the Company or from performing the duties described in this Agreement, and that Employee has not brought, and will not use in connection with Employee's work for the Company, any confidential or proprietary information belonging to any prior employer or practice.

Section 4. Non-Competition

- (A) During Employee's employment with the Company and for a period of twelve (12) months following the termination of Employee's employment with the Company for any reason (the "Restricted Period"), Employee shall not, directly or indirectly, practice interventional cardiology, or provide physician services substantially similar to those Employee provided to the Company, within a fifteen (15) mile radius of the Practice Site, whether as an owner, employee, independent contractor, consultant, or in any other capacity.
- (B) Employee acknowledges that this restriction is limited to the specific specialty in which Employee practiced for the Company, is confined to a small geographic area immediately surrounding the Practice Site, and is intended only to protect the Company's legitimate interest in the continuity of the patient and referral relationships it has developed in that limited area, without impeding Employee's ability to practice medicine, including interventional cardiology, outside that area.

Section 5. Non-Solicitation of Patients

Not Taking Patients With You. When you leave the Company, whether you resign or are let go, you agree that for twelve (12) months after your last day you will not try to take the Company's patients with you. That means you will not reach out to any patient you worked with or knew about because of your job here to get them to move their care away from the Company, and you will not accept care from one of those patients if they reach out to you first about the kind of work the Company does. This isn't meant to stop you from working somewhere else or in the same industry — it's just meant to stop you from using the relationships you built here to pull the Company's patients away when you go.

Section 6. Continuity of Care

- (A) Employee shall not abandon any patient who is in an active course of treatment with Employee as of the date Employee's employment with the Company ends. Employee shall cooperate with the Company in a reasonable transition of the care of such patients to another physician of the Company or, where the patient elects, to a physician of the patient's own choosing.
- (B) Nothing in this Agreement prohibits Employee from notifying patients of Employee's departure from the Company in accordance with applicable

professional and licensing standards, or from responding to a patient's request for copies of the patient's own medical records or for information about the patient's continuing care, regardless of whether the patient is later treated by Employee.

Section 7. Termination Without Cause

Termination Without Cause. Notwithstanding any other provision of this Agreement, if the Company terminates Employee's employment without Cause (as defined in the Company's standard physician employment policies), the post-employment restriction on treating patients described in the Non-Solicitation of Patients Section above shall not apply, and Employee shall remain free to treat any patient of the practice following such a termination.

Section 8. Confidentiality and Trade Secrets

Confidentiality and Trade Secrets. Employee acknowledges that, in the course of employment with the Company, Employee will have access to and may create Confidential Information, and Employee agrees to hold all Confidential Information in strict confidence and not to use or disclose any Confidential Information except as required in the good-faith performance of Employee's duties for the Company. "Confidential Information" means all non-public information relating to the Company's business, including without limitation customer lists and customer data, pricing and cost information, business and marketing plans, financial information, product designs and specifications, research and development materials, supplier and vendor information, personnel information, software, know-how, and any other information that derives independent economic value from not being generally known to, and not being readily ascertainable by proper means by, other persons who can obtain economic value from its disclosure or use, together with all trade secrets as that term is understood under applicable law. Employee's obligations under this Section survive termination of employment for any reason and continue for so long as the information in question retains the character of Confidential Information or a trade secret, without limitation as to time for trade secrets. Upon termination of employment, or at any earlier time upon the Company's request, Employee shall return or destroy all documents, files, and other materials, in whatever form, containing or reflecting any Confidential Information.

Section 9. Return of Company Property

Return of Company Property. Upon termination of employment for any reason, or at any earlier time upon the Company's request, Employee shall promptly return to the Company all property belonging to the Company, including without limitation all documents, files, records, computers, mobile devices, access cards, keys, and any other equipment or materials, together with all copies thereof, in whatever medium, and shall not retain any copies, extracts, or summaries of any of the foregoing.

Section 10. Injunctive Relief

Injunctive Relief. Employee acknowledges that a breach or threatened breach of the restrictive covenants in this Agreement would cause the Company irreparable harm for which money damages would not be an adequate remedy. Accordingly, in the event of any such breach or threatened breach, the Company shall be entitled, in addition to any other rights and remedies available at law or in equity, to seek temporary, preliminary, and permanent injunctive relief restraining Employee from committing or continuing any such breach, without the necessity of posting a bond or other security and without the necessity of proving actual damages. Nothing in this Section shall be construed to limit the Company's right to pursue any other remedy available to it, including the recovery of damages.

Section 11. Survival

Survival. The provisions of this Agreement that by their terms are intended to apply after termination of employment, including without limitation the confidentiality, non-solicitation, and intellectual property provisions, shall survive the termination of Employee's employment and the expiration of this Agreement.

Section 12. Severability

Severability. If any provision of this Agreement is held by a court of competent jurisdiction to be invalid, illegal, or unenforceable, that provision shall be struck from this Agreement, and the remaining provisions shall continue in full force and effect according to their terms.

Section 13. Governing Law

Governing Law. This Agreement shall be governed by, and construed in accordance with, the laws of the State of Connecticut, without giving effect to any choice-of-law or conflict-of-laws provision that would require the application of the laws of any other jurisdiction.

Signatures

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

MERROW CARDIOLOGY ASSOCIATES PC

By: _____ Name: Howard Merrow, M.D. Title: President

Date: November 2, 2023

EMPLOYEE

Alina Fenwick, M.D.

Date: November 2, 2023